

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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JOHNNY PICHARDO,

Plaintiff,

**SUMMONS**

-against-

Jury Trial Demanded

THE CITY OF NEW YORK, P.O. NOEL  
ALPHONSO, Shield No. 16434 (Tax Id. No. 953631),  
Individually and in his Official Capacity, and POLICE  
OFFICERS "JOHN DOE" #1-10, Individually and in  
their Official Capacity (the name John Doe being  
fictitious, as the true names are presently unknown),

Plaintiff designates New York  
County as the place of trial.

The basis of venue is:  
CPLR § 504(3)

Defendants.

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**To the above-named Defendants:**

**You are hereby summoned** to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK  
May 27, 2020

COHEN & FITCH LLP  
Attorneys for Plaintiff  
225 Broadway, Suite 2700  
New York, N.Y. 10007  
(212) 374-9115

TO:

JAMES E. JOHNSON  
Corporation Counsel of the City of New York  
100 Church Street  
New York, New York 10007

P.O. NOEL ALPHONSO, Shield No. 16434 (Tax Id. No. 953631)  
9<sup>th</sup> Precinct Detective Squad  
321 E 5th St.  
New York, NY 10003

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
JOHNNY PICHARDO,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. NOEL ALPHONSO,  
Shield No. 16434 (Tax Id. No. 953631), Individually and  
in his Official Capacity, and POLICE OFFICERS "JOHN  
DOE" #1-10, Individually and in their Official Capacity  
(the name John Doe being fictitious, as the true names are  
presently unknown),

Defendants.

-----X

Plaintiff JOHNNY PICHARDO by his attorneys, COHEN & FITCH LLP, complaining  
of the defendants, respectfully allege as follows:

### **FACTS**

1. Plaintiff JOHNNY PICHARDO is a Hispanic male and has been at all relevant times a resident of New York County in the State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, P.O. NOEL ALPHONSO, Shield No. 16434 (Tax Id. No. 953631) and POLICE OFFICERS “JOHN DOE” #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

### **The Incident**

8. On or about January 27, 2018, in the County, City, and State of New York, plaintiff JOHNNY PICHARDO was lawfully driving in the vicinity of Columbia St. and East Houston St., New York, NY.

9. At approximately 10:50 p.m., plaintiff was pulled over by several members of the NYPD, including defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10.

10. Subsequently, defendant ALPHONSO and another defendant NYPD officer (a defendant POLICE OFFICERS “JOHN DOE” #1-10) approached plaintiff’s vehicle and requested that he provide his license and registration. Plaintiff complied and provided same.

11. Thereafter, defendant ALPHONSO and said other defendant NYPD officer (a POLICE OFFICERS “JOHN DOE” #1-10) directed plaintiff to exit the vehicle. In response, plaintiff attempted to comply and was about to open his door to exit said vehicle, when one of the defendant officers – defendant ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 – opened plaintiff’s door, grabbed plaintiff’s arm, and pulled plaintiff from his vehicle.

12. Subsequently, defendant ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 searched plaintiff and his vehicle. Plaintiff did not consent to these searches nor did defendant ALPHONSO and/or POLICE OFFICERS “JOHN DOE” have reasonable suspicion or probable cause for same. No contraband was found on plaintiff’s person or effects nor in his vehicle as a result of said searches, nor did plaintiff have custody and/or control over any contraband.

13. At no time on January 27, 2018, did defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff’s persons or effects.

14. Nonetheless, defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 placed plaintiff under arrest by handcuffing his arms tightly behind his back.

15. At no time on January 27, 2018, did defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 possess probable cause to arrest plaintiff.

16. At no time on January 27, 2018, did defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

17. At no time on January 27, 2018, did plaintiff possess any illegal weapons and/or any other contraband, have custody and control over any illegal weapons and/or any other contraband, harass any person, nor did he commit any crimes or offenses or behave unlawfully in any way, nor was any evidence or contraband found on his person or in his effects.

18. Thereafter, plaintiff was transported to a nearby police precinct where he was searched, fingerprinted, photographed, questioned, confined against his will in a holding cell for several hours, and charged with crimes by defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10. Specifically, plaintiff was charged with Criminal Possession of a Weapon.

19. After being detained at the aforementioned precinct for several hours plaintiff was transported to Central Booking where he was searched, subjected to a retina scan, and further detained in holding cells for several hours.

20. In connection with plaintiffs' arrest, defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office. Thereafter, defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10 falsely stated, *inter alia*, that plaintiff was found to be in possession of a switchblade and further falsely stated that plaintiff also possessed six (6) illegal knives.

21. At no time on January 27, 2018, did plaintiff possess a switchblade, nor did he possess any illegal knives and/or illegal weapons, nor did plaintiff intend to use any knives unlawfully, nor did he commit any crimes and/or offenses or behave unlawfully in any way.

22. As a result of the foregoing, plaintiff spent approximately twenty-four (24) hours in custody.

23. In addition, as a result of the foregoing, plaintiff made approximately sixteen (16) court appearances.

24. On or about March 5, 2019, several of the criminal charges against plaintiff were dismissed in their entirety. Subsequently, the remaining criminal charges against plaintiff were dismissed in their entirety on or about July 2, 2019.

25. In addition, as a result of the foregoing, plaintiff suffered physical injuries to his wrists as a result of being handcuffed and had property confiscated from him that was not returned.

26. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, physical injuries, severe mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

### **FEDERAL CLAIMS**

#### **FIRST CLAIM FOR RELIEF** **DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

27. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

28. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

29. All of the aforementioned acts deprived plaintiff of his rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

30. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

31. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

32. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING  
FALSE ARREST UNDER 42 U.S.C. § 1983**

33. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

34. As a result of the aforesaid conduct by defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

35. As a result of the foregoing, plaintiff's liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF ARISING  
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

36. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

38. Defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10 misrepresented and falsified evidence before the New York County District Attorney.

39. Defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10 did not make a complete and full statement of facts to the District Attorney.

40. Defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10 withheld exculpatory evidence from the District Attorney.

41. Defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

42. Defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

43. Defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10 acted with malice in initiating criminal proceedings against plaintiff.

44. Defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

45. Defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

46. Defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10 acted with malice in continuing criminal proceedings against plaintiff.



47. Defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

48. Specifically, defendants’ ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest.

49. Notwithstanding the perjurious and fraudulent conduct of defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10, the criminal proceedings were terminated in plaintiff’s favor on or about July 2, 2019.

50. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FOURTH CLAIM FOR RELIEF**  
**DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

52. Defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against the plaintiff.

53. Defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the New York County District Attorney’s Office – namely, defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 falsely stated, *inter alia*, that plaintiff was found to be in possession of a switchblade and further falsely stated that plaintiff also possessed six (6) illegal knives.

54. Defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

55. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

56. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**SEVENTH CLAIM FOR RELIEF**  
**MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

57. Plaintiffs repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

58. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

59. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer’s arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,

- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

60. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

61. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

62. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

63. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

64. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

65. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;

C. Not to have summary punishment imposed upon them; and

D. To receive equal protection under the law.

**PENDANT STATE CLAIMS**

66. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

67. On or about August 23, 2019, and within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

68. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

69. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on October 30, 2019.

70. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

71. Plaintiff has and/or will comply with all conditions precedent to maintaining the instant action.

72. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW  
ASSAULT**

73. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

74. Defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10’s aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

75. As a result of defendants’ ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**BATTERY**

76. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

77. Defendant police officers ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 touched plaintiff in a harmful and offensive manner.

78. Defendant police officers ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 did so without privilege or consent from plaintiff.

79. As a result of defendants’ ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**FALSE ARREST**

80. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

81. Defendant police officers ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 arrested plaintiff in the absence of probable cause and without a warrant.

82. As a result of the aforesaid conduct by defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**FALSE IMPRISONMENT**

83. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

84. As a result of the foregoing conduct by defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and humiliated and subjected to handcuffing and other physical restraints.

85. Plaintiff was conscious of said confinement and did not consent to same.

86. The confinement of plaintiff was without probable cause and was not otherwise privileged.

87. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**MALICIOUS PROSECUTION**

88. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

89. On or about January 27, 2018, defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10 commenced a criminal proceeding against plaintiff.

90. Defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 lacked probable cause to commence said criminal proceeding against plaintiff.

91. Defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 were motivated by actual malice in commencing said criminal proceeding against plaintiff.

92. From January 27, 2018 through July 2, 2019, plaintiff was forced to repeatedly make appearances in Criminal Court to defend himself against the unlawful prosecution initiated by defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10.

93. As a result of the malicious prosecution against him, plaintiff spent approximately one (1) year and five (5) months making court appearances.

94. On or about July 2, 2019, the criminal prosecution against plaintiff terminated in his favor and all charges against him were dismissed.

95. As a result of the aforementioned conduct, plaintiff suffered mental and physical injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

**SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

96. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

97. The aforementioned conduct by defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 was extreme and outrageous, and exceeded all reasonable bounds of decency.

98. The aforementioned conduct was committed by defendants ALPHONSO and/or POLICE OFFICERS “JOHN DOE” #1-10 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

99. The aforementioned conduct was committed by defendants ALPHONSO and/or POLICE OFFICERS "JOHN DOE" #1-10 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

100. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

101. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

**SEVENTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

102. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

103. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

104. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

105. Due to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

**WHEREFORE**, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;



- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York  
May 27, 2020

BY:\_\_\_\_\_/S\_\_\_\_\_  
ILYSSA FUCHS  
GERALD COHEN  
JOSHUA FITCH  
COHEN & FITCH LLP  
Attorneys for Plaintiff  
225 Broadway, Suite 2700  
New York, N.Y. 10007  
(212) 374-9115

**PLAINTIFF'S VERIFICATION**

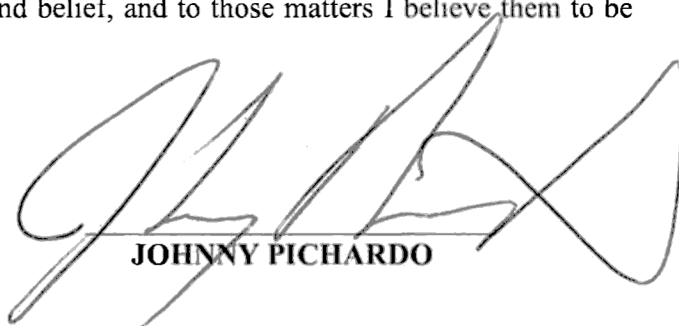
STATE OF NEW YORK )

) ss.:

COUNTY OF NEW YORK )

**JOHNNY PICHARDO**, being duly sworn, deposes and says:

I am the plaintiff in the foregoing action; I have read the annexed Complaint and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and to those matters I believe them to be true.

  
**JOHNNY PICHARDO**

Sworn to before me this

26th day of May, 2020\_\_\_\_\_  
Notary Public